

12	24-01407549 <i>Sandoval vs. General Motors, LLC.</i>	Motion to Set Aside/Vacate Dismissal Plaintiffs’ Christian Sandoval and Alejandro Sandoval’s Motion to Set Aside Dismissal is GRANTED. The dismissal was entered on 12/15/25. Plaintiffs moved to set aside on 12/18/25. Thus, Plaintiff’s motion is timely. Additionally, Plaintiffs’ counsel provides a declaration stating attorney Tim Butler was present and intended to appear at the hearing for this case but had 2 other appearances on the same morning. (Butler Decl., ¶¶3-11.) Thus, relief is mandatory, and the dismissal is set aside. (Code Civ. Proc., § 473, subd. (b).)
14	24-01407549 <i>Vandermeer vs. Bombardier Recreational Products, a corporation</i>	Motion for Summary Judgment and/or Adjudication Defendant BRP US, Inc.’s Motion for Summary Judgment is DENIED. <u>Legal Standard</u> Code of Civil Procedure section 437c(c) states, “(c) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” Section 437c(f)(1) provides, “(f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” Section 437c(o)-(p) states: “(o) A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action. (p) For purposes of motions for summary judgment and summary adjudication:

(2) A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.”

Merits

The elements of a Civil Code, section 1793.2(d)(2) claim are: “(1) the plaintiff purchased a new vehicle with a manufacturer's express warranty; (2) the vehicle did not conform to the express warranty; (3) the manufacturer or its representative could not service or repair the vehicle to conform to the express warranty after a “reasonable number” of attempts; and (4) the manufacturer then failed to “promptly” replace or pay restitution for the vehicle.” (*Ramos v. FCA US LLC* (E.D. Cal. 2019) 385 F.Supp.3d 1056, 1072.) “The general rule is that an express warranty ‘does not cover repairs made after the applicable time or mileage periods have elapsed.’ ” (*Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 [overruled by statute on separate grounds].)

Defendant has satisfied its burden of disproving an element of Plaintiff’s claims. Defendant has provided evidence the Plaintiff purchased the vehicle on July 31, 2019, with a 2 year warranty. (Plesca Decl., Ex. A.) Defendant also presents evidence the vehicle was first presented for a warranty repair on August 2, 2022. (Plesca Decl., Ex. A.) Thus, Defendant has met its burden of showing the first repair did not occur during the warranty period.

Thus, the burden shifts to Plaintiff to prove there is an issue of material fact as to whether the first repair occurred during the warranty period.

Plaintiff has satisfied her burden of establishing an issue of material fact as to the time of the first warranty repair. Plaintiff submits a repair order from Moto United La Habra from April 20, 2021. (Avila Decl., Ex. A.) The repair order notes Plaintiff complained the vehicle was going into “limp mode” and cylinder 3 was not firing properly. (Avila Decl., Ex. A.) Thus, there is an issue of material fact as to whether Plaintiff presented the vehicle for repair during the warranty period.

“The language in Code of Civil Procedure section 437c subdivision (f) makes it clear that a motion for summary adjudication cannot be considered by the court unless the party bringing the motion duly gives notice that summary adjudication is being sought. [Citations.] ‘If a party desires adjudication of particular issues or subissues, that party must

		make its intentions clear in the motion....’ [Citation.]” (<i>Gonzales v. Superior Court</i> (1987) 189 Cal.App.3d 1542, 1545–1546.) Here, Defendant has only moved for summary judgment and not summary adjudication. Thus, failure to dispose of the action entirely is cause to deny the Motion. Further, Defendant’s argument as to the remaining causes of action rely on its argument the first cause of action for breach of express warranty is defective.
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